

PANEL 1/12 — Review, amendment and replacement

START: WHAT KIND OF CONSTITUTIONAL CHANGE IS BEING DISCUSSED?

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+-- REVIEW -> diagnose working -> recommend -> no legal change by report alone
+-- ARTICLE 368 AMENDMENT -> Parliament acts -> procedure + basic-structure review
+-- PROVISIO TO ARTICLE 368(2) -> specified federal change -> at least half States ratify
+-- REPLACEMENT -> fresh constituent claim -> outside NCRWC mandate

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NCRWC = CONSTITUTIONAL MAINTENANCE, NOT A NEW CONSTITUTION.

Basic structure limits destruction; it does not block all reform.

PANEL 2/12 — NCRWC identity and verified chronology

22 FEBRUARY 2000 -> Government of India executive resolution

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TEMPORARY + ADVISORY + NON-STATUTORY + NON-CONSTITUTIONAL

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CHAIR -> Justice M.N. Venkatachaliah, former CJI

COMPOSITION -> 11 members including Chair; P.A. Sangma later resigned

SECRETARY -> Dr Raghbir Singh, not a Commission member

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11 MARCH 2002 -> report adopted/signed

31 MARCH 2002 -> report presented to Prime Minister

PANEL 3/12 — Mandate, consultation and authority

FIFTY YEARS' EXPERIENCE

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efficient + smooth + effective government + socio-economic development

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WITHIN PARLIAMENTARY DEMOCRACY

WITHOUT DISTURBING BASIC STRUCTURE / BASIC FEATURES

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consultation papers + expert studies + public responses + deliberation

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PERSUASIVE EVIDENCE, NOT BINDING LAW OR CONSTITUENT POWER

PANEL 4/12 — Institutional-identity firewall

CONSTITUENT ASSEMBLY -> founding Constitution, 1946-49

PARLIAMENT UNDER ARTICLE 368 -> formal amendment power

SARKARIA / PUNCHHI -> bounded Centre-State review

ADMINISTRATIVE REFORMS COMMISSIONS -> public-administration reform

LAW COMMISSION -> defined law-reform questions

NCRWC -> comprehensive review of constitutional working

RULE: overlap of subject != merger of mandate, recommendation or authority.

PANEL 5/12 — Working of the Constitution

TEXT -> institutions -> rules/statutes -> conventions -> political culture
-> administrative capacity -> remedies -> lived outcomes

TEST SIX SYSTEMS

legislature | executive | judiciary | federalism | local government | rights

ASK FOUR CAPACITIES

authorisation | restraint | delivery | correction

FAILURE OF WORKING != AUTOMATIC FAILURE OF TEXT.

PANEL 6/12 — Electoral and legislative reform cluster

ELECTORAL INTEGRITY

criminalisation -> speedy adjudication + disqualification rules

campaign finance -> audited accounts + donor/donee accountability

party democracy -> comprehensive party law

ECI appointment -> PM + LoP LS + LoP RS + Speaker LS + Deputy Chair RS

LEGISLATURE

LS 120 days | RS 100 | State Houses 90 / under-70 Houses 50

committee scrutiny + public consultation + defined privileges

constructive no-confidence -> 20% notice + alternative leader

anti-defection -> ECI decision + resign/recontest + office bar + invalid destabilising vote

PANEL 7/12 — Executive, services, integrity and institutions

COUNCIL OF MINISTERS -> proposed 10% ceiling

CIVIL SERVICES -> statutory boards for transfer/promotion/placement

SENIOR POSTS -> wider recruitment including open market

ARTICLE 311 -> protect honest officials, improve accountability process

TRANSPARENCY -> information access; move from secrecy to openness

INTEGRITY -> whistle-blower protection + confiscation/benami tools

INSTITUTIONS -> Lokpal/Lokayuktas + CVC + PAC/CAG follow-up

CAUTION: later statutes/rules require separate attribution and status proof.

PANEL 8/12 — Judiciary, tribunals and rights

NATIONAL JUDICIAL COMMISSION (NCRWC DESIGN)

CJI + two senior-most SC judges + Union Law Minister + one eminent person

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+-- appointments

+-- complaints/accountability mechanism

+-- HC retirement 65 | SC retirement 68

JUSTICE DELIVERY

access + speedy justice + ADR/plea bargaining + court planning

tribunal design -> expertise + independence + High Court review

RIGHTS / DPSP / DUTIES

torture, compensation, privacy, access/speedy justice, environment

stronger Article 300A protection; implementation review; proposed new duties

PANEL 9/12 — Federalism and decentralisation

COOPERATIVE FEDERALISM

Inter-State Council consultation + Article 307 trade/commerce body

Governor appointment after Chief Minister consultation

Article 356 -> last resort + floor test + no premature dissolution

reserved Bills -> suggested Governor ~6 months; President ~3 months

LOCAL SELF-GOVERNMENT

clear functions + separate fiscal domain + staff control

timely elections + audit + dissolution safeguards

functions + funds + functionaries -> actual devolution

CAUTION: proposals are not current Articles 200-201 deadlines.

PANEL 10/12 — Implementation audit

EXACT PROPOSAL

- > identify later instrument
- > compare wording and competent route
- > test legal effect
- > seek official attribution
- > label:
 - exact | modified | related/unproven | judicial | displaced | pending

10% ministry ceiling -> 91st Amendment uses 15% -> modified/related

NCRWC judicial commission -> later NJAC invalidated in 2015 -> not current law

disaster to Concurrent List -> 2005 Act without List transfer -> related, not adoption

RTI/Lokpal reforms -> later statutes with independent legal origins and designs

PANEL 11/12 — Diagnosis-to-route matrix

CONVENTION / PROCEDURE DEFECT -> House rules + norms + reason-giving

CAPACITY DEFECT -> staffing + finance + technology + administration

STATUTORY GAP -> ordinary legislation

CONSTITUTIONAL ALLOCATION GAP -> Article 368 amendment

SPECIFIED FEDERAL CHANGE -> Article 368 + at least half States

OPEN-TEXTURED RULE -> judicial interpretation

CURRENT WORKING TESTS

anti-defection | criminalisation | campaign finance | scrutiny | ordinances

Governor/Art 356 | local devolution | judicial vacancies/accountability

tribunals | civil service | commissions | transparency/corruption | federal trust

USE THE LEAST LEGALLY SUFFICIENT ROUTE.

PANEL 12/12 — Criticism, PYQ spine and verdict

LIMITS

mandate self-limited | consultation not constituent consent

basic-structure assurance not judicial pre-clearance

fragmented implementation | uneven feasibility | selective value

PYQ / MAINS SPINE

identity -> mandate -> working beyond text -> recommendation clusters

-> implementation status -> route choice -> legitimacy/feasibility -> verdict

PRELIMS FIREWALL

22-02-2000 | Venkatachaliah | 11 members | 31-03-2002

executive/advisory | not constitutional/statutory | not binding

QUALIFIED VERDICT

NCRWC remains a useful diagnostic reform menu. Adopt, modify or reject each proposal only through the competent constitutional route and current-law evidence.

CURRENT CONTROL: 9 SEPTEMBER 2026.